

## Multiple Choice (10 marks)

1. The legislative branch of the United States government has the power to \_\_\_\_\_ the law.
  - (a) interpret
  - (b) make
  - (c) enforce
  - (d) override
2. On what grounds does John Finnis reject Hume's conception of practical reason?
  - (a) That natural law corresponds to positive law.
  - (b) That Hume is a legal positivist.
  - (c) That syllogistic logic is false.
  - (d) That human reason can help us to determine what constitutes a worthwhile life.
3. Which of the following criticisms of Llewellyn's distinction between the grand and formal styles of legal reasoning is the most compelling?
  - (a) There is no distinction between the two forms of legal reasoning.
  - (b) Judges are appointed to interpret the law, not to make it.
  - (c) It is misleading to pigeon-hole judges in this way.
  - (d) Judicial reasoning is always formal.
4. According to Malinowski, the Trobriand Islanders organized their society around what concept?
  - (a) Conflict.
  - (b) Love.
  - (c) War.
  - (d) Reciprocity.
5. Who was an exponent of "natural law with a variable content"?
  - (a) John Rawls
  - (b) Stammler
  - (c) Jerome Hall
  - (d) John Finns

## True / False (10 marks)

*Answer True or False*

6. True or False: Kant regarded the individual as unimportant, prioritizing social norms over personal autonomy.
7. True or False: The economic downturn during the Depression of the 1930 s played a central role in reviving natural law principles during the 20 th century.
8. True or False: The U.S. Congress is empowered by the Commerce Clause to enact federal statutes regulating foreign and interstate commerce.
9. True or False: In Hohfeld's scheme, power is fundamentally incompatible with liability, as they represent opposing jural relations.
10. True or False: Such conduct is classified as a public act (jure imperii) and therefore attracts immunity.

## Long Form Response (20 marks)

*Answer each question with a clear and complete explanation.*

11. Discuss the primary focus of the European Convention on Human Rights, emphasizing its implications for civil and political rights within the context of constitutional law.
12. Discuss Durkheim's concepts of mechanical and organic solidarity, and analyze how each type influences the nature of law in society, particularly in terms of repressive and restitutive laws.

*End of Paper*